

LINE #	CASE #	CASE TITLE	RULING
LINE 1	23PR195520	Estate of Estella Lovera	See Line 1 for tentative ruling.
LINE 2	25PR199962	The Arams Trust Agreement dated April 21, 2009	The court received correspondence from Mr. Arams' counsel indicating that the request for attorney's fees is withdrawn. Accordingly, this matter is OFF-CALENDAR.
LINE 3	26PR202034	Estate of Rita Pauline Catalano	See Line 3 for tentative ruling.
LINE 4			
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Calendar Line 1

Case Name: *Estate of Estella Lovera*

Case No.: 23PR195520

The above-entitled action came on for hearing before the Honorable Lori E. Pegg on June 12, 2026 at 10:00 a.m. in Department 7. The matter having been submitted, the court finds and orders as follows:

INTRODUCTION

Estella Lovera (“Decedent”) passed away on September 3, 2023, leaving a spouse and two now-adult children. On September 18, 2023, Ramon Lovera (“Ramon”), Decedent’s surviving spouse, initiated this case by filing a spousal property petition.¹ Alejandra Ruiz (“Alejandra”), Decedent’s niece, opposed the spousal property petition, asserting that Decedent had left a will which left all of her property to Alejandra.² On November 3, 2023, Alejandra filed a petition for probate seeking to probate the purported will of Decedent and seeking letters of administration and authorization to proceed under the Independent Administration of Estates Act. Ramon filed an objection to the petition for probate.

Currently before the court is Ramon’s motion for summary judgment on the petition for probate. In the alternative, he seeks summary adjudication of the request to probate the purported will. Alejandra has opposed the motion and Ramon has filed a reply.

DISCUSSION

I. Legal Background

Any party may move for summary judgment. (Code Civ. Proc., § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*).)³ The motion “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., 437c,

¹ Because some of the individuals involved in this case share the same last name, they will be referred to by their first names. No disrespect is intended.

² Alejandra contends that she had a close, parent-child-like relationship with Decedent.

³ All further undesignated statutory references are to the Code of Civil Procedure.